

DEPARTMENT OF VETERANS AFFAIRS

**Justification and Approval (J&A)
For
Other Than Full and Open Competition (>SAT)**

Acquisition Plan Action ID: 36C776-26-AP-0505

1. Contracting Activity:

The contracting activity for this requirement is the Department of Veterans Affairs, Veterans Health Administration (VHA) Program Contracting Activity Central (PCAC).

2. Nature and/or Description of the Action Being Approved:

This justification is in support of a new, single award, Firm-Fixed-Price (FFP) contract for a general contractor to provide construction services for project 657-21-702JC EHRM Training and Administrative Support Space (TASS) at the VA St. Louis Health Care System - John Cochran Division in St. Louis, MO.

The contractor shall provide all labor, materials, equipment, and supervision, and perform all work necessary to prepare site for building operations and complete Project No. 657-21-702JC Training and Admin Space Support. Contractor as required by drawings and specifications.

The anticipated period of performance is 150 calendar days after issuance of Notice to Proceed.

3. Description of Supplies/Services Required to Meet the Agency's Needs:

This requirement was previously procured under contract 36C77622C0148 awarded to Anderson & Sons Contracting, LLC on September 27, 2022, by PCAC in the amount of \$3,493,583.00. Contract 36C77622C0148 was terminated for the convenience of the Government effective August 19, 2025. The construction procurement package was submitted to PCAC in November of 2025, with the final construction documents received in March of 2026.

The anticipated award date for this requirement is May 14, 2026. The estimated cost of the construction service is \$449,954.40

4. Statutory Authority Permitting Other than Full and Open Competition:

- () (1) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements per 41 USC §3304(a)(1) as implemented by RFO 6.103-1;
- () (2) Unusual and Compelling Urgency per 41 USC §3304(a)(2) as implemented by RFO 6.103-2;
- () (3) Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services per 41 USC §3304(a)(3) as implemented by RFO 6.103-3;
- () (4) International Agreement per 41 USC §3304(a)(4) as implemented by RFO 6.103-4
- (X) (5) Authorized or Required by Statute per 41 USC §3304(a)(5) as implemented by RFO 6.103-5;

For this action, 38 U.S.C. 8127(c), known as the Veterans First Contracting Program, provides the authority to directly contract with an SDVOSB or a VOSB. Check the specific VAAR clause used below:

- (X) 819.7007 Sole source awards to a verified service-disabled veteran-owned small business; or
() 819.7008 Sole source awards to a verified veteran-owned small business
() (6) National Security per 41 USC §3304(a)(6) as implemented by RFO 6.103-6;
() (7) Public Interest per 41 USC §3304(a)(7) as implemented by RFO 6.103-7;

5. Demonstration that the Contractor's Unique Qualifications and/or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):

This requirement is for construction services associated with the construction, alteration, or repair (including dredging, excavating, and painting) of buildings, structures, or other real property. The proposed source for this acquisition is Recon Construction Specialties LLC (Recon), a registered and verified service-disabled veteran-owned small business (SDVOSB), located at 2034 Saint Marys Rd., Villa Ridge, MO 63089.

Recon is the most qualified to perform the required services as they possess all institutional knowledge regarding this project. Recon has been awarded actions for the following ten contracts by Network Contracting Office 15 within the past two years:

Contract ID (PIID)	Total Dollars Obligated	Date Signed
36C25525C0012	\$347,750.00	2/13/2025
36C25525C0015	\$119,250.00	2/21/2025
36C25525P0239	\$38,790.00	3/11/2025
36C25525C0028	\$174,750.00	5/12/2025
36C25525C0036	\$1,374,750.00	8/4/2025
36C25525C0061	\$3,298,750.00	9/2/2025
36C25525C0075	\$127,607.00	12/10/2025
36C25526C0009	\$912,750.00	1/6/2026
36C25525C0043	\$2,526,212.00	2/18/2026
36C25526C0023	\$489,750.00	3/18/2026
36C25526C0023	\$489,750.00	3/18/2026

6. Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed possible (including whether a notice was or will be publicized as required by RFO Part 5 and, if not, which exception under RFO Rul 5 applies):

An SBA Small Business Search query indicated there are 73 verified SDVOSBs under NAICS 236220 within the state of Missouri that could potentially submit proposals on this project. On February 24, 2026, a Notice of Intent to Sole Source to an SDVOSB was posted to SAM.gov.

The VA received 2 responses to the notice of intent to sole source. One of the responses was from Recon, the other response was from 4GKB2 LLC. The Contracting Officer (CO) confirmed 4GKB2 LLC was a registered and verified SDVOSB in the SBA Small Business Search portal.

However, the CO was unable to locate any federal award data for 4GKB2 LLC or its partners, Kiefner Brothers, Inc. (UEI: RXZRDKSJDPX1) and 4 Gen Contracting, LLC (UEI: G5R3PYJNQPZ8).

There are proven performance benefits of having a firm familiar with VISN 15 and the VA St. Louis Health Care System - John Cochran Division site features perform the contract. It was determined by the site, and concurred by the CO, that the high value of the site-specific project experience makes other options far less beneficial to the efficient completion of the construction project.

This Justification and Approval (J&A) document will be posted within 14 days after award in accordance with FAR Subpart 6.301. The award synopsis will be posted to GPE in accordance with FAR Subpart 5.301.

7. Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:

The market price for the construction contractor's proposal will be compared with the remaining contract balance for terminated contract 36C77622C0148, along with the IGCE, and from award amounts for similar projects within VISN 15. The CO will make fair and reasonable determination prior to award.

8. Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:

In accordance with FAR Part 10, VAAR 810, and VAAM M810 market research has been conducted for this acquisition. The Small Business Administration (SBA) Small Business Search (SBS) portal was queried on March 27, 2026, to determine whether two or more certified SDVOSBs, with the appropriate NAICS code in the state of Missouri, were listed in the database. The search identified 73 certified SDVOSBs under NAICS code 236220 in the state of Missouri. The CO also queried the SBA SBS portal to confirm the site's preferred contractor, Recon, is a certified SDVOSB with the appropriate NAICS code.

9. Any Other Facts Supporting the Use of Other than Full and Open Competition:

The CO has determined that Recon is the most experienced firm and most likely to successfully complete the construction project without added costs or unacceptable delays. It is recommended that a sole source award be made to Recon, a Service-Disabled Veteran-Owned Small Business concern. A sole source award to Recon is in the government's best interest to successfully complete the construction project as they possess all institutional knowledge regarding this project location.

10. Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:

Company Name	SAM UEI
Recon Construction Specialties LLC	MWZUVWXJ6EE5
4GKB2 LLC	Y98MTT28GDX3

11. A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:

The VA St. Louis Health Care System - John Cochran Division will compete future projects on the open market using the procedures established in FAR Subpart 36.101 for Construction procurements.

12. Requirements Certification: I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.


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Date: 2026.03.30 13:35:19 -05'00'

Nicholas Copeland
Contracting Officer's Representative/Healthcare Engineer
VA St. Louis Health Care System

Date

13. Approvals in accordance with the VHAPM Part 806.3 OFOC SOP:

a. **Contracting Officer or Designee's Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.


RICHELLE
GRAY
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by RICHELLE
GRAY

Richelle N. Gray
Contracting Officer
Program Contracting Activity Central (PCAC)

March 27, 2026

Date

b. **One Level Above the Contracting Officer (Required over SAT but not exceeding \$900K):** I certify the justification meets requirements for other than full and open competition.


DONALD MARSH
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Date: 2026.05.05 11:47:53 -04'00'

Donald A. Marsh III
Division Chief
Program Contracting Activity Central (PCAC)

Date